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#22 - ONNEL PEREZ ESPIN, AN INDIVIDUAL vs KINNELOA EVA, LLC, et al.

APEC Group, Inc.'s

motion to compel further responses to Form Interrogatories (Set One) is denied. APEC Group, Inc.'s request for monetary sanctions is denied.

For a motion to

compel further responses to interrogatories, the movant must meet and confer with the responding party and file a Separate Statement or follow the Court's alternative method of outlining the disputes. (Code Civ. Proc., § 2030.300, subd. (b); California Rules of Court, rule 3.1345(b)(2).)

The record submitted

with this motion does not show compliance with the meet-and-confer requirement incorporated by section 2030.300. APEC's own papers describe letters and emails, and the Bearman Declaration identifies only written correspondence and email exchanges; it does not identify any in-person conference, telephone call, or videoconference. That showing is insufficient under the current text of section 2016.040, which requires a reasonable and good-faith attempt "either in person, by telephone, or by videoconference" as to each issue presented by the motion. (Code Civ. Proc., § 2016.040, subd. (a).)

Furthermore, the

papers show that APEC's May 20 letter challenged only Form Interrogatories Nos. 2.6 and 2.7, while the May 29 letter addressed document-production matters and did not raise Form Interrogatories Nos. 4.1, 6.3, or 8.1. Accordingly, even apart from the absence of a qualifying conference, the submitted record does not establish an attempt to informally resolve each issue presented by the motion. (Code Civ. Proc., § 2016.040, subd. (a).)

Because the motion fails on this procedural ground, the Court does not reach the merits of whether Plaintiff's responses to the identified interrogatories are evasive or incomplete.

Unless waived by the parties, Moving Party is to give notice.